

An Act

ENROLLED HOUSE
BILL NO. 3678

By: Provenzano, McCane, and
Dollens of the House

and

Gillespie of the Senate

An Act relating to crimes and punishments; amending 21 O.S. 2021, Section 1176, as last amended by Section 10, Chapter 452, O.S.L. 2024 (21 O.S. Supp. 2025, Section 1176), which relates to the use of electronic communication devices to threaten, intimidate, or harass public officials; expanding protection for municipal officials and public school board members; modifying scope of certain definition; and providing an effective date.

SUBJECT: Crimes and punishments

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1176, as last amended by Section 10, Chapter 452, O.S.L. 2024 (21 O.S. Supp. 2025, Section 1176), is amended to read as follows:

Section 1176. A. Whoever, with the intent to threaten, intimidate or harass, or facilitate another to threaten, intimidate or harass, uses an electronic communication device to knowingly publish, post or otherwise make publicly available personally identifiable information of a peace officer, public official, election official, medical care provider, or crime victim, and as a result places that peace officer, public official, election official, medical care provider, or crime victim in reasonable fear of death or serious bodily injury shall, upon conviction, be guilty of a misdemeanor punishable by imprisonment in the county jail for a term not to exceed six (6) months, or by a fine not to exceed One Thousand Dollars (\$1,000.00), or by both such fine and imprisonment. Upon conviction for a second or subsequent violation, the person

shall be punished by imprisonment in the county jail for a term not to exceed one (1) year, or by a fine not to exceed Two Thousand Dollars (\$2,000.00), or by both such fine and imprisonment.

B. To the extent the provisions of ~~Section~~ subsection A of this section apply to medical care providers, the protections provided herein shall not apply when the incident is unrelated to the provider's professional duties.

C. As used in this section:

1. "Crime victim" shall have the same meaning as defined in Section 142A-1 of this title;

2. "Election ~~Official~~ official" means a member or employee of the State Election Board or a county election board, the Secretary of the State Election Board or a county election board, or a person serving as a precinct official or absentee voting board member appointed as required by law;

3. "Electronic communication" shall have the same meaning as defined in Section 1172 of this title. Electronic communication does not include broadcast transmissions or similar communications that are not targeted at any specific individual;

4. "Electronic communication device" means any cellular telephone, facsimile, pager, computer, or any device capable of electronic communication;

5. "Medical care provider" means a doctor, resident, intern, nurse, nurse practitioner, nurses' aide, ambulance attendant or operator, paramedic, emergency medical technician, laboratory technician, radiologic technologist, physical therapist, physician assistant, chaplain of a health care facility, volunteer of a health care facility, pharmacist, nursing student, medical student, member of a hospital security force, and any other employee or contractor working in or for a health care facility;

6. "Peace officer" shall have the same meaning as that term is defined in Section 99 of this title;

7. "Personally identifiable information" means information which can identify an individual including but not limited to name, birth date, place of birth, mother's maiden name, biometric records, Social Security number, official state- or government-issued driver

license or identification number, government passport number, employer or taxpayer identification number or any other information that is linked or linkable to an individual, such as medical, educational, financial or employment information;

8. "Public official" means any person elected or appointed to a state office in the executive, legislative, or judicial branch of state government or other political subdivision of the state, including any person elected or appointed to a municipal office, authority, board or commission, or public school board; and

9. "Publish" means to circulate, deliver, distribute, disseminate, transmit, or otherwise make available to another person.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 11th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 5th day of May, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____